

ORDER SHEET
IN THE LAHORE HIGH COURT
RAWALPINDI BENCHRAWALPINDI
JUDICIAL DEPARTMENT

Crl. Misc. No. 1196-B/2020/RWP

Kamran Khan **Vs.** The State and another.

S.No. of order/ proceeding	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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08.09.2020 Mr. Muhammad Bashir Paracha, Advocate for the petitioner in Crl. Misc. No.1196-B of 2020 and for the complainant /respondent No.2 in Crl. Misc. No.1482-B of 2020.
Sheikh Ahsan ud Din, Advocate for the petitioners in Crl. Misc. No.1482-B of 2020 and for the complainant /respondent No.2 in Crl. Misc. No.1196-B of 2020.
Mr. Khalid Pervaiz Opal, Deputy Prosecutor General with Zulfiqar, SI

By this single order Criminal Miscellaneous No.1196-B/2020 titled "*Kamran Khan Vs. The State and another*" and Criminal Miscellaneous No.1482-B/2020, titled "*Wasib Khan and four others Vs. The State and another*" arising out of the same FIR and its **cross version** based on the *rapt*No. 26 of Kamran Khan dated 09.02.2020, are being decided.

2. Through *Criminal Miscellaneous No.1196-B/2020* the petitioner, namely Kamran Khan, seeks post-arrest bail in case FIR No.59 of 2020 dated 09.02.2020, registered at police station Saddar Hassan Abdal District Attock in respect of offences under sections 302, 337-H(2), 148 and 149 PPC whereas through *Criminal Miscellaneous No.1482-B/2020* the petitioners, namely, Wasib Khan, Hamid, Easab Khan, Arfeen Khan and Amjad Khan seek post-arrest bail in the cross-version case recorded vide ***rapt No.26*** dated 09.02.2020 on the report of Kamran Khan in respect of offences under sections 324, 337-F(iv), 337-F(iii) and 34 PPC at the same police station.

3. The precise allegation against Kamran Khan (the petitioner in *Criminal Miscellaneous No.1196-B/2020*) is that he made a fire shot hitting

on the lips of Sadaqat Khan (deceased). The cross version of the case was recorded on the statement of Kamran Khan through rapt No.26 wherein he stated that Arfeen Khan (the petitioner No.4 in Crl. Misc. No.1482-B of 2020) fired at Kamran Khan hitting him on his left thigh. It was further recorded in the cross version that when Kamran Khan was being taken to the hospital there again the petitioners namely Wasib Khan, Hamid Khan, Easab, Arfeen Khan and Amjad Khan (the petitioners in Crl. Misc. No.1482-B of 2020) started firing at Kamran Khan and its witnesses resulting in injuries to Naveed Khan, Shakir Ali, Rehmat Khan, Ahtisham Khan and Muhammad Riaz.

3. I have heard learned counsel for the parties, learned Deputy District Public Prosecutor and perused the record with their able assistance.

4. This is a post-arrest bail and only tentative assessment of the evidentiary material produced before the Court can be made at this stage. As per the F.I.R. , as a result of this unfortunate incident, Sadaqat Khan lost his life. A cross-version of the same incident was also recorded and investigated by the police. The said cross-version was recorded on the statement of Kamran Khan (the petitioner in *Crl. Misc. No.1196-B of 2020*) and according to the said cross-version Kamran Khan himself, Naveed Khan, Shakir Ali, Rehmat Khan, Ahtisham Khan and Muhammad Riaz were injured in the same incident at the hands of Wasib Khan, Hamid Khan, Easab, Arfeen Khan and Amjad Khan (the petitioners in *Crl. Misc. No.1482-B of 2020*). All the said injured persons were got examined by the Medical Officers and Medio Legal Examination Certificates were issued. The petitioner Kamran Khan (the petitioner in *Crl. Misc. No.1196-B of 2020*) was himself seriously injured during the occurrence and because of the serious nature of his injuries, his arrest was deferred by the investigating officer. The medical officer opined that Kamran Khan had received two firearm injuries on his person and both were declared to the of the kind of “*Jurh Ghayar-Jaifah Munaqqilah*”, made punishable under 337-F(vi) and punishable for a term which may extend to seven years as *tazir*. After the investigation of the case it was concluded by the Investigating Officer that both the parties were to be sent for trial for the

offences allegedly committed by them. In this respect reports under section 173 of the Code of Criminal Procedure 1898 were also prepared whereby the accused of the FIR as well as of the cross version were sent for trial. It is also a fact that there is no mention of the injuries received by Kamran Khan, Naveed Khan, Shakir Ali, Rehmat Khan, Ahtisham Khan and Muhammad Riaz(the witnesses of the cross-version) in the F.I.R. and neither it has been explained that how these witnesses of the cross-version were injured and on the other hand in the cross version case lodged through *rapt* No.26 there is no explanation regarding the death of Sadaqat Khan. It is to be seen, after recording of the evidence by the learned trial court, as to which party was the aggressor.*Prima facie*, both the parties have given their own versions qua the manner in which this incident took place and the possibility of suppression of real facts by both the parties cannot be ruled out at this stage. In the cases of counter-version arising from the same incident, it is almost settled that such cases are covered for grant of bail on the ground of further inquiry as contemplated under section 497(2) Cr.P.C. In such cases normally, bail is granted on the ground of further inquiry for the reason that the question as to which version is correct is to be decided by the trial court which is supposed to record evidence and also appraise the same in order to come to a final conclusion in this regard. It is yet to be determined as to which party is the aggressor and which party is aggressed upon. Reliance in this regard can be placed to the case of “Shoaib Mehmood Butt Vs. Iftikhar ul Haq and 3 others” (1996 SCMR 1845) wherein the August Supreme Court of Pakistan has held as under:-

“In case of counter-versions arising from the same incident, one given by complainant in F.I.R. and the other given by the opposite-party case-law is almost settled that such cases are covered for grant of bail on the ground of further enquiry as contemplated under section 497(2), Cr.P.C. In such cases normally, bail is granted on the ground of further enquiry for the reason that the question as to which version is correct is to be decided by the trial Court which is supposed to record evidence and also appraise the same in order to come to a final conclusion in this regard. In cases of counter-versions, normally, plea of private defence is taken giving rise to question as to which party is aggressor? which party is aggressed. In the case of Fazal Muhammad v. Ali Ahmad (19)0 SCMR 391) in cross-cases the High Court granted bail to the accused on the ground that there was probability of

counter-version being true as some of the accused had received injuries including a grievous injury on the head of one accused. It was held by this Court that in such circumstances the High Court was right in granting bail and no interference was warranted, In the same context, reference can be made to the case of Mst. Shafiqan v. Hashim Ali and others (1972 SCMR 682)."

Reliance is also placed on the case of Muhammad Zahid Umar Vs. The State and others (2016 SCMR 1246) wherein it has been held as under:-

"Prima facie, both the parties have given their own version qua the manner in which this incident took place. Chances of suppression of real facts by both the parties cannot be ruled out. However it is for the learned trial Court to determine, after elaborate evaluation of the evidence to be recorded by it, as to which party was the aggressor and who was aggressed upon. Moreover, according to learned Additional Prosecutor General, challan in both the cases i.e. the instant FIR and the cross version has already been submitted in the trial Court. In this backdrop the case of the present petitioner, in the peculiar circumstances of the case, becomes one of further enquiry falling within the ambit of section 497(2), Code of Criminal Procedure."

Reliance is also placed on the case of Ghulam Abbas alias Gaman and others Vs. The State and others (2017 SCMR 1730) wherein it has been held as under:-

"We have heard the learned counsel for the parties, who represent the opposite sides of a fight in which several people died or were injured on both sides. Though, the incident apparently taken place in front of the house of one of the parties, yet, it appears to be the result of a sudden fight. The possibility of absence of pre-meditation cannot be overruled. It is difficult to determine, at this stage, who was aggressor. It is a case of two versions and two FIRs."

Reliance is also placed on the cases of Ali Sheharyar Vs. The State (2008 SCMR 1448), Noor Muhammad Vs. The State (2009SCMR 324), Fazal Muhammad Vs. Ali Ahmad and three others (1976 SCMR 391), Mithoo Vs. The State (1978 SCMR 231), Mst. Shafiqan Vs. Hashim and another (1972 SCMR 682) and Ghulam Abbas Vs The State and others" (2016 SCMR 2048). Mere involvement in a heinous offence is no ground for refusing bail to an accused who otherwise becomes entitled for the

concession of bail. The petitioner namely Kamran Khan (the petitioner in Crl. Misc. No.1196-B of 2020) was arrested in this case on 14.02.2020 and since then he is behind the bars. The petitioners namely Wasib Khan, Hamid Khan, Easab, Arfeen Khan and Amjad Khan (the petitioners in Crl. Misc. No.1482-B of 2020) were arrested in the case on 30.06.2020 and since then are behind the bars. The learned Deputy Prosecutor General states that the petitioners are not involved in any other cases. The investigation qua the petitioners is complete and they are no more required for further investigation, therefore, their continued incarceration would not serve any beneficial purpose at this stage.

5. For what has been discussed above, the case of the petitioners namely Kamran Khan (the petitioner in Crl. Misc. No.1196-B of 2020), Wasib Khan, Hamid Khan, Easab, Arfeen Khan and Amjad Khan (the petitioners in Crl. Misc. No.1482-B of 2020) becomes one of further inquiry covered by subsection (2) of section 497, Cr.P.C. Liability of petitioners for the said offences would be determined by the learned trial court after sifting the evidentiary worth of the material produced before the same. Till then, case of the petitioners would be within the domain of section 497(2), Cr.P.C. calling for further inquiry into the petitioners guilt.

6. In view of the above discussion, both the petitions (*Crl. Misc. No.1196-B of 2020 and Crl. Misc. No.1482-B of 2020*) are allowed. The petitioner namely Kamran Khan (the petitioner in Crl. Misc. No.1196-B of 2020) is admitted to post-arrest bail subject to his furnishing bail bonds in the sum of Rs.1,000,000/- (rupees one million only) with two sureties, each in the like amount, to the satisfaction of learned trial court. The petitioners namely Wasib Khan, Hamid Khan, Easab, Arfeen Khan and Amjad Khan (*the petitioners in Crl. Misc. No.1482-B of 2020*) are admitted to post-arrest bail subject to their furnishing bail bonds in the sum of Rs.100,000/- (rupees one hundred thousand only) each with two sureties, each in the like amount, to the satisfaction of learned trial court.

7. Needless to mention that any observations made in the above order are tentative in nature and shall not influence the trial court. Additionally a direction is issued to the learned trial court to conclude the

trial of both the cases expeditiously, preferably within a period of **four** months from the receipt of copy of this order. It is made clear that if the petitioners or any person acting on their behalf causes delay in the conclusion of the trial then the trial court shall be at liberty to cancel the bail of the petitioners in accordance with the law.

(Sadiq Mahmud Khurram)
Judge

Raheel

Approved for reporting.

Judge